IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
PRINCIPAL BENCH

Item No. 123
(CAA)- 115(PB)/2018

IN THE MATTER OF:
Banga Tool Engineering Pvt. Ltd.
&
Victora Tool Engineering Pvt. Ltd. .... Applicant/petitioner

Under Section 230-232

Order delivered on 03.01.2019

Coram:

CHIEF JUSTICE (RTD.) M. M. KUMAR
HON'BLE PRESIDENT

SH. S. K. MOHAPATRA
HON'BLE MEMBER (TECHNICAL)

PRESENTS:

For the petitioner:	Mr. P. Nagesh, Anand M. Mishra, Advs.
For the Income Tax Deptt.:	Mr. Puneet Rai, Stng. Counsel.
For the RD(NR):	Ms. Sonam Sharma, Co. Prosecutor
For OL:	Mr. Shubham Pandey, Advocate

ORDER

Learned Company Prosecutor for the RD and counsel for the OL state that there is no objection to the approval of the Scheme. The undertaking required by the RD has also been filed which is taken on record. On behalf of Transferor Company, learned counsel for the petitioner has placed on record the status report received from the Deputy Commissioner of Income Tax Department dated 16.11.2018. It has been stated that there is no demand nor any scrutiny assessment of the assesse M/s. Banga Tool Engineers Pvt. Ltd., Transferor Company is pending before the department. It has further been stated that the department do not have

any objection with regard to its merger with the Transferee Company namely M/s. Victora Tool Engineers Pvt. Ltd.

Arguments heard. Order reserved.

-Sd-

(M. M. KUMAR)
PRESIDENT

-Sd/-

(S. K. MOHAPATRA)
MEMBER (TECHNICAL)

03.01.2019.
Aarti Makker